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California Prepares Ultimatum for Food Brands

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* California Assembly members Jesse Gabriel and Buffy Wicks recently proposed a bill that would prohibit food brands from including certain ingredients, such as brominated vegetable oil, red dye 3, potassium bromate, propylparaben and titanium dioxide, in their items.

* The ingredients have been linked to various health issues.

* While the bill could lead to some products being banned in California, Gabriel hopes that companies will voluntarily change their recipes instead.

* The bill takes a shot at the FDA for having a "huge loophole for approving chemicals" and its first hearing is anticipated for April.

* If passed, Gabriel hopes the bill will influence companies to change their recipes in all states, not just California.

A new bill proposed by California state legislators could require certain food brands to amend their ingredient list or no longer be sold in the state.

The bill, which is authored by Assembly members Jesse Gabriel and Buffy Wicks, both Democrats, would prohibit brands from including ingredients such as brominated vegetable oil, red dye 3, potassium bromate, propylparaben and titanium dioxide in their products.

The ingredients, all of which have been banned in the European Union (EU), can be found in sodas, processed foods, cereals and candy. Several companies such as Coke and Pepsi have moved away from using the ingredients in their items. If passed, the bill would make it law that other companies follow suit.

It is unlikely that the bill will ban any food brands. Instead, Gabriel told Newsweek he hopes the brands will shift to healthier versions of the ingredients to follow the new protocol.

For example, Skittles contains titanium dioxide, an additive that enhances color, in its candies in the U.S. The candy company faced a lawsuit in 2022 for using the ingredient, despite being FDA-approved. But Skittles still sells its products in the EU, where the candy is modified to not include titanium dioxide.

"The idea here is to have these companies change their recipes," Gabriel said. "All of these chemicals are banned in Europe, but [the companies] still sell in EU by making minor modifications to their recipes."

Gabriel said that the ingredients listed in the bill have a variety of health issues when consumed in dangerous amounts with links to cancer, reproductive issues and development and behavioral issues in children. He said there are "readily available, safer alternatives" for the ingredients without banning the products entirely.

Some brands using titanium dioxide in their ingredients are Goya, Skinnygirl and Land O'Lakes.

Newsweek reached out to Skittles, Goya and Skinnygirl through a website contact form for comment. Newsweek reached out to Land O'Lakes by email for comment.

If a company refuses to make the changes, it could be banned from being sold in California, but Gabriel doesn't expect that to happen.

"Hypothetically it's possible, but as a practical matter the chances are virtually zero," he said. "They would be choosing voluntarily to exit a market of 40 million people. It doesn't make any financial sense."

Coke and Pepsi stopped using brominated vegetable oil in their sodas in 2014. Gabriel hopes that under the new bill, other brands will follow suit.

The bill takes a shot at the Food and Drug Administration (FDA), which Gabriel accuses of having a "huge loophole for approving chemicals." A press release from Gabriel's office said many of the listed ingredients were never independently evaluated by the FDA or were reviewed years ago.

"Instead, these chemicals have entered the nation's food supply through a loophole in federal law—known as GRAS, or "generally recognized as safe"—that was intended to apply to common household ingredients like vinegar," the release said. "As a result of this loophole, chemical companies have added new substances to the food supply with almost no meaningful federal oversight."

An FDA spokesperson told Newsweek that it does not comment on proposed or pending legislation. On April 14, an FDA spokesperson told Newsweek that the statement in Gabriel's press release was inaccurate, and that FDA evaluates all the substances mentioned in his release.

The bill was recently introduced and assigned to the Assembly's Health Committee. Its first hearing is anticipated for April. If passed, Gabriel hopes the bill influences companies to change their recipes in all states, not just California.

"Our expectation is that no products come off the shelf and people make minor modifications to their recipes to take out toxic chemicals," Gabriel said.

Update 4/14/2023, 10:05 a.m. ET: This article has been updated with comment from the FDA.

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